



Buyer Information

Name: Montrell Jubilee	Phone: 2409064819		
Address: 702 Neptune Ave	City: Oxon Hill	State: MD	Zip: 20745

Dealer Information

Name: Koons Toyota Tysons	Phone: 571-998-1665		
Address: 8610 Leesburg Pike	City: Vienna	State: VA	Zip: 22182

Covered Vehicle

Year: 2022	Make: Toyota	Model: Corolla	VIN: JTDEPMAE8N3031148	MSRP/NADA: \$20250.00
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Finance Information

Lender/Creditor: TD BANK N.A.				
Address: PO BOX 675		City: WILMINGTON	State: OH	Zip: 45177
Effective/Purchase Date: 17 Jul 2026	Addendum Price: \$1200.00	Financing Contract Term: 72	Amount Financed: \$26196.57	
Monthly Payment: \$513.15	First Payment Due: 31 Aug 2026		Interest rate: 11.89	

GAP AGREEMENT

Subject to the full terms, conditions, and exclusions set forth in this Guaranteed Auto Protection (GAP) Addendum, in the event of a Constructive Total Loss to the Covered Vehicle, We agree to waive Our rights against You for the GAP Amount. The GAP Amount is defined in the Definitions section of this GAP Addendum. You will remain responsible for payment of any items stated in the Exclusions section of this GAP Addendum.

This is the entire agreement between the parties, subject to the original Financing Contract. This GAP Addendum supersedes any previous or contemporaneous agreement or discussion between the parties (whether oral or written) regarding the subject matter herein. No issuing dealer, other dealership, or any individual has the authority to modify or change any provision of this GAP Addendum. The written provisions of this GAP Addendum outline the sole benefits which We are obligated to provide, and no other provisions are implied hereunder, and none can be implied unless originally printed (not stamped, handwritten, or verbal) in this GAP Addendum.

If a creditor assigns, sells, or transfers a Financing Contract the GAP Addendum remains a part of the Financing Contract. Every provision of this GAP Addendum applies equally to any assignee or holder of a consumer credit sale or consumer loan containing a fee or charge for GAP. No creditor, assignee, or holder shall have any subrogation rights against the consumer. All holders and assignees of the Financing Contract are subject to all claims and defenses which You could assert against the original dealer resulting from the purchase of this GAP.

ACCEPTANCE

By signing below, You acknowledge that you have read, understand, and accept all the provisions in this GAP Addendum and You agree to purchase it. No other verbal representations have been made to You that differ from these written provisions.

You also acknowledge and understand the following:

- 1) This GAP Addendum is optional, cancelable, and is not a condition of credit, or the equivalent.
- 2) If You purchase GAP from this Dealer, You understand that the Dealer may retain all or a portion of the charge paid by You.
- 3) You may wish to consult an alternative source to determine whether similar coverage is available and at what cost.
- 4) GAP is not a substitute for collision or property damage insurance. You are responsible for maintaining collision and comprehensive insurance for the full value of the Covered Vehicle and any other insurance required by the Financing Contract or applicable law.
- 5) You are responsible for all notifications or claims that are required to be filed with Your insurance company. We will not process or handle Your insurance claims for You.
- 6) GAP benefits may decrease over the term of the Financing Contract.
- 7) This GAP Addendum may not waive the entire amount You owe at the time of loss.
- 8) GAP only provides a benefit if more is owed than the vehicle is worth at the time of a Constructive Total Loss and all terms of the GAP Addendum are satisfied.
- 9) If the Primary Carrier Constructive Total Loss Settlement or the ACV is greater than or equal to the Net Payoff, no waiver of debt will be made under this GAP Addendum.
- 10) Before purchasing GAP, you should consider factors such as the term, amount financed, vehicle value, and driving habits (e.g., mileage, wear and tear, maintenance).
- 11) In the event of cancellation of this GAP Addendum or early termination of the Financing Contract, any refund of the addendum price that was included in the Financing Contract may be applied by the dealer/creditor as a reduction of the overall amount owed under the Finance Contract rather than applying the refund strictly to the addendum price unless the Financing Contract was paid in full. If the Financing Contract was paid in full, You will receive the refund directly.
- 12) This GAP Addendum is not valid without signature.
- 13) Neither the extension of credit, terms of the credit, nor the terms of the related motor vehicle sale or lease may be conditioned upon the purchase of this GAP Addendum.

Dealer Signature:  Buyer Signature: 

I hereby acknowledge that I agree to and have received 5 of 5 pages (Initial) 

ADMINISTRATOR

Landcar Agency, Inc. dba Total Care Auto Powered by Asbury • 351 W Opportunity Way • Suite 440 • Draper, Utah 84020 • (800) 733-7339 • FAX (801) 563-4199

DEFINITIONS

ACTUAL CASH VALUE or ACV. On the Date Of Loss either: 1) the Primary Carrier Constructive Total Loss Settlement as determined by the Primary Carrier of the Covered Vehicle, including amounts that the Primary Carrier subtracted from the value of the Covered Vehicle due to pre-existing damage, wear and tear, unpaid insurance premiums, salvage, towing and storage, or other condition adjustments; or 2) if there is no Primary Carrier for the Covered Vehicle, the retail value as defined in the National Automobile Dealers Association (NADA) Official Used Car Guide for the territory in which the Covered Vehicle is principally garaged. For a Covered Vehicle which has no NADA retail value available or is located in territories where NADA is not customarily used, ACV will be determined using the best information available to Us, which We reasonably believe accurately reflects the retail value of the Covered Vehicle and is customarily used as the basis for establishing ACV for vehicles in the territory where the Covered Vehicle is located.

ADMINISTRATOR. Landcar Agency, Inc. dba Total Care Auto Powered by Asbury.

BUYER. The natural person(s) or business(es), incorporated or unincorporated, named in the Financing Contract, purchasing, or leasing the Covered Vehicle from the Dealer. Also identified using the terms: "You" or "Your."

COMMERCIAL PURPOSE. Vehicles used for the purpose of commercial rental, taxi, limousine or shuttle, or towing service; vehicles equipment with dump beds, cherry picker, lifting or hoisting equipment; vehicles used for emergency service; vehicles used primarily for off-road use, prearranged or organized racing or competitive driving; vehicles used commercially for snow removal, unless equipped with a factory installed or factory authorized snowplow package. Rideshare services are covered under this Addendum and are not considered Commercial Purpose. Usage must not exceed manufacturer's ratings and/or limitations or exceed one (1) ton capacity.

CONSTRUCTIVE TOTAL LOSS. A direct and accidental loss of or damage to the Covered Vehicle which results in the Buyer's Primary Carrier declaring the Covered Vehicle a total loss. If there is no Primary Carrier, determination will be based on the following:

- A. The vehicle is stolen and not recovered within thirty (30) days after the Date of Loss and remains unrecovered at the time of notification of total loss. A police report must be provided. If a police report is not provided, the claim may be denied or coverage excluded.
- B. The total cost to repair the vehicle is greater than or equal to its cash value determined by Us using the average retail value for a Used Vehicle in the NADA official used car guide or, if not available, its equivalent based on the best information available on Your vehicle's options, mileage, and condition on the Date of Loss.

COVERED VEHICLE. Any automobile, van, or light truck as described in the Financing Contract and this GAP Addendum not to exceed the Gross Vehicle Weight Rating (GVWR) of 12,500 pounds.

DATE OF LOSS. The date on which Covered Vehicle is reported stolen or incurs physical damage that is severe enough to constitute a Constructive Total Loss.

DEALER. The motor vehicle dealer designated as the Dealer on the front page of this GAP Addendum from whom You are purchasing or leasing the Covered Vehicle, including its successors or assigns. Also identified using the terms: We, Us, or Ours.

FINANCIAL INSTITUTION. The Financial Institution on the front of this GAP Addendum that the Dealer intends to assign this GAP Addendum and Financing Contract. Also identified using the terms "Lender" or "Creditor."

FINANCING CONTRACT. The contract which represents the Financing Agreement between the Dealer and Buyer for the purchase or lease of the Covered Vehicle, and which sets forth the terms, conditions, payment amount, effective date, and expiration date.

GAP ADDENDUM. This Guaranteed Auto Protection (GAP) Financing Contract Addendum, which adds to the Financing Contract.

GAP AMOUNT. An amount equal to the difference between the Net Payoff and the Actual Cash Value of the Covered Vehicle on the Date of Loss. When applicable, the GAP Amount includes the amount of the Buyer's physical damage deductible on the Primary Carrier's policies up to one thousand dollars (\$1,000).

NET PAYOFF. Your outstanding balance as of the Date of Loss. The Net Payoff will not include any amounts for the following: 1) currently due and unpaid monthly charges; 2) unearned finance charges/interest or lease charges; 3) charges arising from Your failure to perform any term or condition of the finance or lease contract; 4) any fees or amounts charged in connection with early termination of the finance or lease contract; 5) other amounts received and applied against Your finance or lease contract balance after the date of loss such as a refund of unearned credit insurance premiums or refunds on service contracts or prepaid maintenance contracts.

The Net Payoff will include any lease pre-payment provisions as provided in the Financing Contract when the provisions have been provided in writing to our GAP Administrator.

NEW VEHICLE. Covered Vehicle that satisfies all the following: 1) manufactured in current or immediately prior calendar year; 2) odometer reflects less than six thousand and one (6,001) miles, and 3) Buyer is the first titled owner (not a Dealer or manufacturer).

PRIMARY CARRIER. The insurance company that 1) is used by the Buyer to provide physical damage coverage on the Covered Vehicle, or 2) provides liability coverage to any person who has caused the Covered Vehicle to incur a Constructive Total Loss, and for which that person is legally liable.

PRIMARY CARRIER CONSTRUCTIVE TOTAL LOSS SETTLEMENT. The total amount paid by the Primary Carrier for settlement of a Constructive Total Loss, plus any physical damage deductibles.

USED VEHICLE. Covered Vehicle that is not a New Vehicle.

HOW TO REPORT A CONSTRUCTIVE TOTAL LOSS

In the event of a Constructive Total Loss under this GAP Addendum, You must provide the following documentation to the Administrator within ninety (90) days of the Primary Carrier Constructive Total Loss Settlement from Your Primary Carrier or if no primary insurance is in place, within ninety (90) days of the date the Covered Vehicle is determined to be a Constructive Total Loss.

1. A complete copy of the Primary Carrier Constructive Total Loss Settlement, including the valuation worksheet, if the Covered Vehicle is insured.
2. A copy of the original Financing Contract and this GAP Addendum.
3. Any other documentation reasonably requested by the Administrator or Us.

If You do not provide all requested documentation within ninety (90) days of when the claim was opened, Your claim will be closed.

All documentation must be emailed to gapclaims@landcar.com or mailed to Landcar Agency, Inc. dba Total Care Auto Powered by Asbury, 351 W. Opportunity Way, Suite 440, Draper, Utah 84020.

CONDITIONS

If the Primary Carrier Constructive Total Loss Settlement or the ACV is greater than or equal to the Net Payoff, no waiver of debt will be made under this GAP Addendum.

If any portion of the GAP Amount to be waived under this GAP Addendum upon a Constructive Total Loss would be payable by an insurance policy or other agreement, We will waive only the proportion of GAP Amount remaining after the application of the funds paid under such policy or agreement.

EXCLUSIONS: This GAP Addendum does not provide coverage for losses:

- A. Occurring prior to the effective date of the GAP Addendum.
- B. Due to confiscation of the Covered Vehicle by a government body or public official.
- C. If the Covered Vehicle is held as security under any wholesale, floor plan, field warehouse, or any type of financing made to a dealership.
- D. Occurring after the Covered Vehicle has been repossessed or placed in the Dealer's or Creditor's possession or in possession of their employees or agents.
- E. For the value of options/equipment on the Covered Vehicle not appropriately considered by the Primary Carrier.
- F. For any amounts subtracted from the Primary Carrier Constructive Total Loss Settlement due to pre-existing damage, excess wear and tear (may include mileage), unpaid insurance premiums, towing, storage, owner-retained salvage, or other adjustments to the value of Your Covered Vehicle.

- G. Of any claim arising from, directly or indirectly, any material misrepresentation of facts, falsification of documents, intentional acts, fraudulent, criminal, or illegal acts (as determined on the police report), or dishonest act(s) of any person in lawful possession of the vehicle or keys.
- H. If the vehicle is used for any Commercial Purpose, or while used in any race or other contest.
- I. Occurring outside of the United States or Canada.
- J. Salvaged title.
- K. Non-factory components.
- L. Caused by or resulting from:
 - 1. Gradual deterioration, obsolescence, rust, corrosion, latent defect, inherent vice, freezing, overheating, or resulting from any repairing restoration, or remodeling process, structural, mechanical, or electrical breakdown or failure (unless fire or other accident ensues, and then only for the loss or damage by such ensuing fire or accident).
 - 2. Hostile or warlike action in time of peace or war (declared or undeclared), including action in hindering, combating, or defending against actual, impending, or expected attack.
 - 3. Any weapon of war employing atomic fission or radioactive force, whether in time of peace or war.
 - 4. Insurrection, rebellion, revolution, civil war, usurped power, or action taken by a governmental authority in hindering, combating, or defending against such occurrence, seizure, or destruction, under quarantine or customs regulations; confiscation by order of any government or public authority; risks of contraband or illegal transportation or trade.
 - 5. Nuclear reaction or nuclear radiation or radioactive contamination, all whether controlled or uncontrolled, and whether such loss be direct or indirect, proximate, or remote, or be in whole or part caused by, contributed to, or aggravated by the perils covered by this GAP Addendum.
- M. To personal property of the Buyer other than the Covered Vehicle.

TERMINATIONS AND REFUNDS

TERMINATING EVENTS: This GAP Addendum will terminate without notice on the date that any of the following events occur: 1) the original date Your Financing Contract is scheduled to terminate; 2) You prepay the entire balance or refinance Your Financing Contract; 3) You submit a request to cancel this GAP Addendum; 4) on the date the Administrator receives a written or verbal cancellation request from Your Creditor; 5) the Covered Vehicle is repossessed by Your Dealer/Creditor; 6) in the event a Constructive Total Loss is not covered due to a stated Exclusion in this addendum.

You may cancel this addendum at any time prior to its maturity. To cancel this addendum and receive a refund, You must submit a written request to the Administrator.

- 1. This GAP Addendum cannot be cancelled retroactively for any reason other than a terminating event that results in early termination of the Financing Contract.
- 2. To obtain a refund on the basis of any terminated event listed above or any terminating event that results in the early termination of the Financing Contract, You must submit a signed request to the Administrator. Any request to obtain a refund based on a terminating event, must be submitted to the Administrator within one hundred eighty (180) days of the terminating event. Any requests received after one hundred eighty (180) days will be effective as of the date the request is received by the Administrator.
- 3. If the cancellation of this GAP Addendum occurs as a result of a default under the Financing Contract, the repossession of the motor vehicle associated with the Financing Contract, or any other termination of the Financing Contract, any refund due may be paid directly to the Lender or Administrator and applied as a reduction of the amount owed under the Financing Contract unless You can show proof that the Finance Contract has been paid in full.
- 4. If cancellation request or terminating event occurs within the first thirty (30) days of purchase, the refund will be one hundred percent (100%) of the Addendum Price, so long as no benefits have been provided. After the first thirty (30) days, the unearned portion of the Addendum Price will be refunded according to the pro-rata method, less a fifty-dollar (\$50) cancellation fee.
- 5. The amount paid for this GAP Addendum is considered fully earned and no refund will be available if a Constructive Total Loss occurs and there has been or will be a waiver under this GAP Addendum.

CANCELLATION BY US

We may cancel this GAP Addendum for the following:

- 1. A material misrepresentation by Buyer in connection with purchasing this GAP Addendum or signing the Financing Contract; or
- 2. Nonpayment of a fee for this GAP Addendum when due. If this GAP Addendum is cancelled due to nonpayment, We will mail written notice of cancellation to You and will cancel Your GAP Addendum no sooner than at least ten (10) days after the delivery or first-class mailing of written notice.

If this GAP Addendum is cancelled for any other reason, We will mail written notice of cancellation to You and will cancel Your GAP Addendum no sooner than thirty (30) days after the delivery or first-class mailing of a written notice. If this GAP Addendum is canceled for any of the above reasons, a refund will be issued according to the Terminations and Refunds section of this GAP Addendum; however, the cancellation fee will not apply.

TRANSFERS

This GAP Addendum is for the sole benefit of the Buyer identified on page one. It may not be leased, gifted, or transferred to another vehicle, Financing Contract, customer, or buyer, and only the Buyer or authorized representative may initiate a claim.

DISPUTES

Prior to bringing or participating in a lawsuit asserting any claim in law or equity relating to this GAP Addendum or its subject matter (collectively "Legal Claims"), You must provide written notice of Your Legal Claim to the Administrator within one (1) year from the day on which You learned, or with reasonable diligence should have learned, of the basis of Your Legal Claim. Such written notice must identify the Buyer name and the Addendum Number or VIN of the specific GAP Addendum to which Your Legal Claim relates. The provision of such timely, written notice is a condition precedent to bringing any Legal Claim relating to this GAP Addendum or its subject matter. If You fail to timely provide such written notice of any Legal Claim, You shall have waived such Legal Claim in all respects. If You do provide the timely, written notice required hereunder, the Administrator shall have ninety (90) calendar days following its actual receipt of such notice to cure the circumstance(s) giving rise to Your Legal Claim. You agree that a full refund of the Addendum Price shall constitute a full and complete cure of any such circumstances and shall extinguish all Legal Claims You may have relating to this GAP Addendum or its subject matter. Each requirement set forth in this paragraph requires strict (not substantial) compliance and survives the Termination or Cancellation of this GAP Addendum. Your obligations under this paragraph shall in no way be diminished or modified by any court's obligation to apply statutes of limitation applicable at law in the event a Legal Claim is filed.

STATE ADDENDA

ALABAMA

The cost of the GAP Addendum is not regulated. You should determine whether the cost of the GAP Addendum is reasonable in relation to the protection afforded by the GAP Addendum.

TERMINATIONS AND REFUNDS – Paragraph 2 is deleted in its entirety and replaced with the following:

- 2. In the event the GAP Addendum is cancelled due to early termination of the Financing Contract, We shall provide, or cause the Administrator or Dealer to provide, within 60 days of termination, any refund due to You without requiring You to request cancellation of the GAP Addendum.

CONNECTICUT

This GAP Addendum is not available on leased vehicles.

FLORIDA

We do not have the unilateral right to modify this GAP Addendum unless the modification is favorable to You and is made without an additional charge or You are notified of the proposed change and are provided with a reasonable opportunity to cancel without penalty before the change goes in effect.

TERMINATIONS AND REFUNDS – Paragraph 2 is deleted in its entirety and replaced with the following:

2. To obtain a refund on the basis of a Terminating Event, You must submit a signed request to the Administrator within ninety (90) days of the Terminating Event. Any requests received after ninety (90) days will be effective as of the date the request is received by the Administrator.

GEORGIA

TERMINATIONS AND REFUNDS – Paragraph 2 is deleted in its entirety and replaced with the following:

2. To obtain a refund on the basis of a Terminating Event after the first thirty (30) days of purchase, You must submit a signed request to the Administrator within ninety (90) days of the Terminating Event or Your decision to cancel this GAP Addendum. Any requests received after ninety (90) days will be effective as of the date the request is received by the Administrator.

INDIANA

You may be able to obtain similar coverage to this GAP Addendum from Your Primary Carrier. This GAP Addendum is not available for purchase if the underlying Financing Contract has an amount financed under the consumer credit sale (not including the cost of this GAP Addendum, cost of any credit insurance, and the cost of any warranties or service agreements) is less than eighty percent (80%) of the MSRP for new vehicles or NADA for used vehicles.

TERMINATIONS AND REFUNDS – Paragraph 2 is deleted in its entirety and replaced with the following:

2. In the event the GAP Addendum is cancelled due to early termination of the Financing Contract, We shall provide any refund due to You without requiring You to request cancellation of the GAP Addendum.

TERMINATIONS AND REFUNDS – Paragraph 4 is amended with the following:

No cancellation fee will be assessed if this GAP Addendum is cancelled.

MAINE

This GAP Addendum is not available on leases.

If the Dealer knew, or should have known, at the time of the sale of this GAP Addendum that the Covered Vehicle was ineligible for coverage under this GAP Addendum, We will not cancel this GAP Addendum and will waive the GAP Amount if a Constructive Total Loss occurs. This GAP Addendum is not available on leased vehicles.

TERMINATIONS AND REFUNDS – Paragraph 4 is amended with the following:

No cancellation fee will be assessed if this GAP Addendum is cancelled.

HOW TO REPORT A CONSTRUCTIVE TOTAL LOSS – Paragraph 2 is deleted.

HOW TO REPORT A CONSTRUCTIVE TOTAL LOSS – is amended with the following:

If You submit your claim after ninety (90) days of the Primary Carrier Constructive Total Loss Settlement from Your Primary Carrier or if no primary insurance is in place, after ninety (90) days of the date the Covered Vehicle is determined to be a Constructive Total Loss, the Administrator will review Your late submission for reasonableness and will honor any reasonable submissions. Additionally, if the Administrator requests additional information during the claims process, additional time will be afforded to comply with the requirements stated herein. Further, a reasonableness standard will be utilized and the benefit available hereunder will not be conditioned solely on Your production of documents if such documents are equally available to Us or the Administrator. A reasonableness standard will be used in all document requests.

MASSACHUSETTS

TERMINATIONS AND REFUNDS – Paragraph 4 is deleted in its entirety and replaced with the following:

4. If cancellation request or terminating event occurs within the first thirty (30) days of purchase, the refund will be one hundred percent (100%) of the Addendum Price, so long as no benefits have been provided. After the first thirty (30) days, the unearned portion of the Addendum Price will be refunded according to the pro-rata method.

MARYLAND

This GAP Addendum is not available on leases.

DEFINITIONS - ACTUAL CASH VALUE or ACV is deleted and replaced with the following:

ACTUAL CASH VALUE or ACV. On the Date Of Loss either: 1) the Primary Carrier Constructive Total Loss Settlement as determined by the Primary Carrier of the Covered Vehicle; or 2) if there is no Primary Carrier for the Covered Vehicle, the retail value as defined in the National Automobile Dealers Association (NADA) Official Used Car Guide for the territory in which the Covered Vehicle is principally garaged. For a Covered Vehicle which has no NADA retail value available or is located in territories where NADA is not customarily used, ACV will be determined using the best information available to Us, which We reasonably believe accurately reflects the retail value of the Covered Vehicle and is customarily used as the basis for establishing ACV for vehicles in the territory where the Covered Vehicle is located.

DEFINITIONS - GAP AMOUNT is deleted and replaced with the following:

GAP AMOUNT. An amount equal to the difference between the Net Payoff and the Actual Cash Value of the Covered Vehicle on the Date of Loss. When applicable, the GAP Amount includes the amount of the Buyer's physical damage deductible on the Primary Carrier's policies up to one thousand dollars (\$1,000).

DEFINITIONS - NET PAYOFF is deleted and replaced with the following:

NET PAYOFF. Your outstanding balance as of the Date of Loss. The Net Payoff will not include any amounts for the following: 1) unpaid monthly charges; 2) unearned finance charges/interest or lease charges; 3) charges arising from Your failure to perform any term or condition of the Financing Contract; 4) other amounts received and applied against Your Financing Contract balance after the Date of Loss such as a refund of unearned credit insurance premiums or refunds on service contracts or prepaid maintenance contracts.

CONDITIONS – EXCLUSIONS is amended to delete exclusions E., F., and G.

CONDITIONS – EXCLUSIONS M. is deleted and replaced with the following:

M. To personal property of the Buyer other than the Covered Vehicle unless included in your Financing Contract.

NEW HAMPSHIRE

We may assign this GAP Addendum with the Financing Contract to a sales finance company or other assignee. This GAP Addendum is not available on leased vehicles.

TERMINATIONS AND REFUNDS – Paragraph 2 is deleted in its entirety and replaced with the following:

2. To obtain a refund on the basis of a Terminating Event, You must submit a signed request to the Administrator within ninety (90) days of the Terminating Event. Any requests received after ninety (90) days will be effective as of the date the request is received by the Administrator.

NEW JERSEY

TERMINATIONS AND REFUNDS – Paragraph 2 is deleted in its entirety and replaced with the following:

2. In the event the GAP Addendum is cancelled due to early termination of the Financing Contract, You will receive any refund due to You without requiring You to request cancellation of the GAP Addendum. If this GAP Addendum is cancelled due to early termination of the Financing Contract or Your decision to cancel, We shall provide, or cause the Administrator or Dealer to provide, within 60 days of termination or receipt of Your cancellation notice.

NORTH CAROLINA

TERMINATIONS AND REFUNDS – Paragraph 2 is deleted in its entirety and replaced with the following:

2. To obtain a refund on the basis of a Terminating Event, You must submit a signed request to the Administrator within ninety (90) days of the Terminating Event. Any requests received after ninety (90) days will be effective as of the date the request is received by the Administrator.

PENNSYLVANIA

A portion of the charges You pay for this GAP Addendum will be retained by the Dealer.

RHODE ISLAND

TERMINATIONS AND REFUNDS – Paragraph 2 is deleted in its entirety and replaced with the following:

2. To obtain a refund on the basis of a Terminating Event, You must submit a signed request to the Administrator within ninety (90) days of the Terminating Event. Any requests received after ninety (90) days will be effective as of the date the request is received by the Administrator.

SOUTH CAROLINA

You are not eligible to purchase this GAP Addendum if 1) You, the credit terms including but not limited to cash price, automobile value, or amount financed, or the automobile used as collateral for the credit transaction do not qualify for or conflict with any restrictions or limitations of the GAP Addendum conditions, or 2) the amount financed, less the cost of this GAP Addendum, the cost of credit insurance, and the cost of service contracts is less than eighty percent (80%) of the MSRP for new vehicles or NADA average retail value for used vehicles. THIS GAP ADDENDUM IS NOT REQUIRED TO OBTAIN CREDIT, NOR TO OBTAIN CERTAIN TERMS OF CREDIT OR TO PURCHASE THE RELATED MOTOR VEHICLE. THIS GAP ADDENDUM WILL NOT BE PROVIDED UNLESS YOU SIGN AND AGREE TO PAY THE ADDITIONAL COST. This GAP Addendum is not insurance and does not take the place of collision, comprehensive, or any other form of insurance on the Covered Vehicle.

TERMINATIONS AND REFUNDS – Paragraph 2 is deleted in its entirety and replaced with the following:

2. To obtain a refund on the basis of a Terminating Event, You must submit a signed request to the Administrator within ninety (90) days of the Terminating Event. Any requests received after ninety (90) days will be effective as of the date the request is received by the Administrator. No cancellation fee will be assessed if this GAP Addendum is cancelled.

TERMINATIONS AND REFUNDS – Paragraph 4 is amended with the following:

No cancellation fee will be assessed if this GAP Addendum is cancelled.

TENNESSEE

The cost of this GAP Addendum is not regulated. You have the responsibility to determine whether the cost of the GAP Addendum is reasonable in relation to the protection afforded by this GAP Addendum.

TERMINATIONS AND REFUNDS – Paragraph 2 is deleted in its entirety and replaced with the following:

2. To obtain a refund on the basis of a Terminating Event after the first thirty (30) days of purchase, You must submit a signed request to the Administrator within ninety (90) days of the Terminating Event or Your decision to cancel this GAP Addendum. Any requests received after ninety (90) days will be effective as of the date the request is received by the Administrator.

UTAH

This GAP Addendum is subject to limited regulation by the Commissioner of Insurance and You may submit complaints regarding this GAP Addendum to the Commissioner of Insurance.

TERMINATIONS AND REFUNDS – Paragraph 2 is deleted in its entirety and replaced with the following:

2. To obtain a refund on the basis of a Terminating Event, You must submit a signed request to the Administrator within ninety (90) days of the Terminating Event. Any requests received after ninety (90) days will be effective as of the date the request is received by the Administrator.

WASHINGTON

This GAP Addendum is not credit insurance, nor does it eliminate the borrower's obligation to insure the motor vehicle as provided by laws of this state. Purchasing a GAP Addendum does not eliminate the borrower's rights and obligations under the vendor single-interest and collateral protection coverage laws of this state.

TERMINATIONS AND REFUNDS – Paragraph 2 is deleted in its entirety and replaced with the following:

2. To obtain a refund on the basis of early payoff or refinance, You must submit a signed request to the Administrator. Any request to obtain a refund on the basis of early payoff, refinance, or repossession must be submitted to the Administrator within ninety (90) days of the terminating event. Any requests received after ninety days (90) days will be effective as of the date the request is received by the Administrator.

VERMONT

We do not have the unilateral right to modify this GAP Addendum unless the modification is favorable to You and is made without an additional charge or You are notified of the proposed change and are provided with a reasonable opportunity to cancel without penalty before the change goes in effect. We shall not restrict Your right to bring an action to enforce the terms of this GAP Addendum or otherwise challenge the denial of a claim, or require any civil action brought in connection with this GAP Addendum must be brought in the courts of a jurisdiction other than Vermont.

VIRGINIA

TERMINATIONS AND REFUNDS – Paragraph 2 is deleted in its entirety and replaced with the following:

2. To obtain a refund on the basis of a Terminating Event, You must submit a signed request to the Administrator within ninety (90) days of the Terminating Event. Any requests received after ninety (90) days will be effective as of the date the request is received by the Administrator.

WISCONSIN

This GAP Addendum is between You and the Dealer that sold this GAP Addendum to You, and after any assignment, this GAP Addendum is between You and the assignee.

TERMINATIONS AND REFUNDS – TERMINATING EVENTS is deleted in its entirety and replaced with the following:

TERMINATING EVENTS: This GAP Addendum will terminate without notice on the date that any of the following events occur: 1) the original date Your Financing Contract is scheduled to terminate; 2) You prepay the entire balance or refinance Your Financing Contract; 3) You submit a request to cancel this GAP Addendum; 4) on the date the Administrator receives a written or verbal cancellation request from Your Creditor; 5) the Covered Vehicle is repossessed by Your Dealer/Creditor; 6) in the event of a Constructive Total Loss; or 7) upon the expiration of any redemption period after a repossession or surrender of the Covered Vehicle specified in Your Financing Contract.

TERMINATIONS AND REFUNDS – Paragraph 2 is deleted and replaced with the following:

2. Upon cancellation or termination of this GAP Addendum, We shall make an appropriate refund or credit of the Addendum Price or shall cause to be made an appropriate refund or credit by instructing in writing the appropriate party to make the refund or credit.

TERMINATIONS AND REFUNDS – Paragraph 4 is deleted and replaced with the following:

4. If cancellation request or terminating event occurs within the first thirty (30) days of purchase, the refund will be one hundred percent (100%) of the Addendum Price plus the amount of any applicable finance charges, so long as no benefits have been provided. After the first thirty (30) days, the unearned portion of the Addendum Price will be refunded according to the pro-rata method. No cancellation fee will be assessed if this GAP Addendum is cancelled.